

THORNFIELD DEPARTMENT OF ENVIRONMENTAL QUALITY
OFFICE OF REGULATORY COMPLIANCE

NOTICE OF VIOLATION AND ORDER TO COMPLY

Notice No.: TEQ-NOV-2024-1187

Date Issued: August 5, 2024

TO:

Pinnacle Chemical Manufacturing Co.
Attention: Mr. Stewart G. Albrecht, Compliance Officer
3300 Refinery Road
Port Caldwell, TX 77530

RE: NOTICE OF VIOLATION — THORNFIELD CLEAN AIR ACT, CHAPTER 382
FACILITY PERMIT NO. AIR-2019-4422

FINDINGS OF VIOLATION

Pursuant to an inspection conducted on July 18, 2024, by Compliance Officer Renata Okonkwo (Inspector ID: TEQ-CO-0091), the Thornfield Department of Environmental Quality ("Department") has determined that Pinnacle Chemical Manufacturing Co. ("Facility" or "Respondent") has committed the following violations at the above-referenced facility:

VIOLATION 1: Excess Volatile Organic Compound (VOC) Emissions
During the inspection period of July 14-18, 2024, continuous emissions monitoring data recorded VOC emissions from Stack 4-B of 148 parts per million (ppm) on a rolling 24-hour average basis. This exceeds the permitted limit of 85 ppm established in Permit Condition 3.4.1 by 74.1%. This constitutes a violation of Thornfield Clean Air Act Section 382.085(b).

VIOLATION 2: Incomplete Quarterly Emissions Report
Respondent failed to submit the Quarterly Emissions Report for Q2 2024 (April-June 2024), which was due on July 31, 2024. This constitutes a violation of Thornfield Clean Air Act Section 382.141(a) and Permit Condition 6.1.2.

VIOLATION 3: Deficient Stack Monitoring Equipment
Portable opacity monitor OM-7 was found to be operating with a calibration certificate expired on March 31, 2024. Data collected by OM-7 since that date is presumed unreliable. This constitutes a violation of Thornfield Clean Air Act Section 382.162 and Permit Condition 5.3.1.

REQUIRED CORRECTIVE ACTIONS AND DEADLINES

The Department hereby orders Respondent to:

ACTION 1: IMMEDIATE — Within 48 hours of receipt of this Notice
Reduce VOC emissions from Stack 4-B to at or below the permitted limit of 85 ppm.
Provide written confirmation of corrective action to the Department by email to compliance@teq.thornfield.gov, Attention: NOV Case Manager.

ACTION 2: WITHIN 14 DAYS — By August 19, 2024